How Upahar Giving works with Shree Shiva Shaikshanika Seva Ashrama

This note explains, in plain language, what Upahar Giving is, what it does for the ashrama, and why it is set up the way it is. It is written for the school's trustees and staff, for the teachers, and for anyone thinking of giving or helping. The signed agreements are what bind us; this is the explanation behind them.

IN ONE PARAGRAPH

Upahar Giving is a small nonprofit in New Jersey, run by volunteers, formed to support the children at the ashrama near Tumakuru. It works alongside the school as an advisory, administrative and fundraising partner. It raises money in the United States and in India, engages and pays teachers directly for a programme run at the school, and brings outside knowledge and connections where they are useful. It is a separate organisation with its own board, and over time it may take on other projects, but the ashrama is the reason it exists.

WHY A SEPARATE ORGANISATION

Indian law sets clear rules for money that comes from abroad to Indian charities. A school or ashrama may receive foreign funds only once it holds the registration the Foreign Contribution (Regulation) Act requires. The ashrama does not hold that registration today.

We have no interest in working around those rules. We want to be useful to the school in a way that is lawful and would look right to any regulator, auditor or donor who examined it. So, instead of sending money to the school, Upahar Giving runs its own programme at the school. It engages teachers directly as independent contractors, pays them directly from its own account, and buys and serves food directly to the children. No money, food or equipment is handed to the school itself, and the school is never asked to receive foreign funds it is not registered to receive.

Fees paid to an individual for their own services are not a "foreign contribution" under Indian law; a donation to an institution is. The whole structure rests on keeping that distinction clean.

HOW THE TEACHING PROGRAMME WORKS

After reviewing the legal constraints, we concluded that the best approach is for Upahar Giving to hire the teachers as contractors while giving the teachers real autonomy in the classroom and giving the school a strong, continuous say in how the programme is run. The school and the teachers have lived in

this community and know best how to reach these children. We want to add insight, knowledge and resources to that relationship, not replace it.

What Upahar Giving does

Signs a written agreement with each teacher. Pays each teacher's monthly fee directly into their own bank account. Sets the overall plan and budget, keeps the records, reports to its board and donors, and carries the legal and financial responsibility for the programme.

What the school does

Remains the primary liaison on the ground. Nominates teachers it trusts. Is consulted before anyone is engaged, changed or let go. Gives the day-to-day approvals teachers need, as Upahar's authorised local representative. Shares its observations, which become part of every evaluation. Keeps full authority over its own premises and the children in its care.

What the teachers keep

Freedom in how they teach. A clear monthly fee, paid on time, with a simple invoice. The right to respond to any feedback before a decision is made about them. The right to work for the school directly if Upahar ever steps back.

What is decided together

Priorities, subjects, timetable, which children take part and what they eat are proposed at a joint planning meeting each year. Upahar's board makes the final decision and tells the school what was adopted and why.

MONEY

Upahar Giving takes no commission and charges no fee. Its trustees are unpaid volunteers. Everything it raises is used for the programme at the school and the modest costs of running a nonprofit properly.

Because Upahar Giving holds and manages the funds itself rather than passing them on, it can plan how they are used over time. That means teachers can be paid reliably through months when giving is slow, and it means the funds can be managed so that whatever they earn while they wait is put toward things the children and the school need.

From the United States	Gifts to Upahar Giving. Our application for 501(c)(3) recognition is pending; once granted, it applies from our formation date and gifts become tax-deductible for US donors.
From India	Donors in India can also give to Upahar Giving. We will provide simple instructions for doing so lawfully.
To the teachers	Paid directly, under a signed agreement, into the teacher's own account, after each completed month of teaching. Never in advance, never in cash, never through a third party.

To the school	Nothing, for now. This is deliberate and is what keeps the school clear of foreign-funding rules it is not registered under.

LOOKING AHEAD

The arrangement runs month to month. Upahar Giving must give the school at least thirty days' notice if it ever intends to stop, and if it does, the school may choose to continue the programme itself, with our curriculum, materials and introductions to the teachers and suppliers.

We would also like to help the school obtain its own FCRA registration in time. The school's auditor has suggested letting the programme run for about six months first, with every payment through online banking and nothing in cash, and then applying; we agree. Our part would be guidance, connections with people who have done it, and, where Indian law permits, help with the costs involved. Once the school holds that registration, far more becomes possible, and the two organisations can decide together what should change.

WHAT WE ASK OF THE SCHOOL

Space and time in the school day for the programme, at no charge. A designated contact who can act as the local representative. The details we need to engage each teacher properly: name, identity documents, qualifications, subjects, and a bank account in the teacher's own name. Honest observations about how the teachers and the programme are doing. Cooperation on child safeguarding, attendance records and the occasional visit from our board or a reviewer. And the candour to tell us when something is not working.

WHO WE ARE

Upahar Giving Inc. is a New Jersey nonprofit corporation formed in September 2026, with a board of three trustees and no paid staff. "Upahar" means "gift" in Hindi. Our website is upahargiving.org and we can be reached at upahargiving@gmail.com.

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This brief is a plain-language explanation and is not itself an agreement. The Memorandum of Understanding between Upahar Giving Inc. and the ashrama, and the service agreements with individual teachers, set out the binding terms. Upahar Giving Inc. has applied for recognition as a 501(c)(3) public charity; the application is pending. © 2026 Upahar Giving